

SENATE No. 2642

The Commonwealth of Massachusetts

—
In the One Hundred and Ninety-Fourth General Court
(2025-2026)
—

SENATE, October 9, 2025.

The committee on Senate Ways and Means to whom was referred the Senate Bill relative to the Move Over Law (Senate, No. 2547), - reports, recommending that the same ought to pass with an amendment substituting a new draft with the same title (Senate, No. 2642).

For the committee,
Michael J. Rodrigues

SENATE No. 2642

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act updating the Move Over Law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 7C of chapter 89 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting before the definition of “Emergency response
3 vehicle” the following definition:-

4 “Disabled vehicle”, a vehicle that is not an emergency response vehicle and that is
5 stationary and located on the shoulder or breakdown lane of a roadway or highway.

6 SECTION 2. Said section 7C of said chapter 89, as so appearing, is hereby further
7 amended by striking out, in lines 8 and in lines 10 and 11, each time they appear, the words
8 “executive office of transportation and public works” and inserting in place thereof the following
9 words:- Massachusetts Department of Transportation.

10 SECTION 3. Said section 7C of said chapter 89, as so appearing, is hereby further
11 amended by inserting after the definition of “Recovery vehicle” the following definition:-

“Utility vehicle”, a vehicle being used to install, maintain, repair, operate or restore communications service or electric or gas distribution or transmission service and that is operated by an employee of or a person under contract with a company incorporated for the purpose of the transmission of intelligence by electricity or telephone or an electric, distribution or transmission company as defined by section 1 of chapter 164.

SECTION 4. Said section 7C of said chapter 89, as so appearing, is hereby further amended by striking out, in lines 19 and 20, the words “emergency vehicle, highway maintenance vehicle or recovery vehicle with flashing lights” and inserting in place thereof the following words:- emergency response vehicle, highway maintenance vehicle, utility vehicle, disabled vehicle or recovery vehicle with activated flashing lights, including vehicle hazard warning signals.

SECTION 5. Said section 7C of said chapter 89, as so appearing, is hereby further amended by inserting after the words “maintenance vehicle”, in lines 27 and 28, the following words:- , utility vehicle, disabled vehicle.

SECTION 6. Said section 7C of said chapter 89, as so appearing, is hereby further amended by striking out subsection (c) and inserting in place thereof the following subsection:-
(c) A violation of this section shall be punishable by a fine of \$100 for a first offense, by a fine of \$250 for a second offense and by a fine of \$500 for a third or subsequent offense. In addition to any fines pursuant to this subsection, an operator who commits a second or subsequent offense under this section shall be required to complete a program selected by the registrar of motor vehicles that encourages a change in driver behavior and attitude.